SuperGuardian SMSF Webinar

Division 296 strategic considerations for your SMSF clients

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Session outline

Today's session

- CGT reset – 30 June 2026
- The impact of reversionary v non-reversionary pensions
- Death taxes – hidden in plain sight
- What to do with high balance super members

Learning outcomes

1. The pros and cons of CGT cost base adjustments
2. How the terms and conditions of existing or future pensions can impact who pays Div 296 and when
3. The need to have estate planning conversations sooner rather than later
4. How Div 296 will impact more than just members with more than $3 million

THE BASICS

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What is Division 296 tax?

An additional 15% tax on the portion of your super fund's annual earnings that relates to a member balance above **$3 million.**

Legislated in the Treasury Laws Amendment (Building a Stronger and Fairer Super System) Act 2026

15%

Additional tax rate
on top of existing 15%
fund earnings tax

~30% – 40%

Effective rate above $3M
(+10% above $10M
for very large balances)

1 July 2026

The date the new
law takes effect
(first year: 2026–27)

CONTEXT

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How does super get taxed today?

BEFORE DIV 296 (Current law)	AFTER DIV 296 (From 1 July 2026)
Your SMSF pays 15% tax on investment earnings each year	Everything before still applies to ALL super funds
Contributions from your employer or yourself are also taxed at 15%	PLUS — if a member's total super balance > $3 million...
In retirement (pension phase) earnings are often tax-free	...an extra 15% tax applies to earnings on the part above $3M
Capital gains taxed at 10% if the asset is held 12+ months	A further 10% applies above $10M — effective rate ~40%
This applies equally regardless of how large your balance is	Pension phase earnings are no longer fully protected above $3M and $10M

WHO IS AFFECTED

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The $3 million threshold

$3,000,000

Below $3M — standard 15% tax only

Above $3M — extra 15% applies

Total Superannuation Balance

The threshold applies to your TOTAL super balance across ALL funds — not just what's in your SMSF. If you have money in another fund as well, it all counts together.

The threshold is indexed

The $3 million threshold will increase with inflation (CPI) over time, in $150,000 increments, starting from 2027–28.

Only the portion above $3M is taxed

If your balance is $4 million, only the earnings attributable to the $1 million above the threshold is subject to the extra 15% — not your entire balance.

Two thresholds apply

TWO thresholds apply: above $3M an extra 15% (effective ~30%); above $10M an additional 10% more on top (effective ~40% on that portion).

THE $10 MILLION UPPER THRESHOLD

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Very large balances — an even higher rate applies

Below $3M	$3M	$3M–$10M	$10M	Above $10M
Below $3M Standard 15%		$3M–$10M Extra 15% (total ~30%)		Above $10M Extra 25% (~40%)

The $3 million threshold

An additional 15% tax applies to the portion of fund earnings attributable to TSB above $3M. Combined with standard 15%, the effective rate is approximately 30%. Threshold indexed by CPI in $150,000; steps from 2027–28.

The $10 million threshold

An additional 10% Division 296 tax applies to earnings attributable to the portion of TSB above $10 million — stacking on top of the 15% already payable above $3M. The combined effective rate above $10M is up to 40%.
Threshold indexed by CPI in $500,000; steps from 2027–28.

Who does the $10M threshold affect? *Very few Australians currently — but compounding growth, insurance proceeds and other transfers (e.g. CGT cap) can push balances above $10M over time. Important to monitor regularly.*

TSB Range	Effective tax rate on that portion of earnings	Division 296 applies?
Below $3M	~15% (standard fund tax only)	No
$3M to $10M	~30% (15% + extra 15%)	Yes — 15% additional tax
Above $10M	~40% (15% + extra 25%)	Yes — extra 10% on top of the above-$3M rate

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THE $3M THRESHOLD

How is your total super balance measured?

Your Total Superannuation Balance (TSB) is measured at 30 June each year.

2026–27

TRANSITIONAL YEAR

Only 30 June 2027 closing TSB used for in-scope determination

2027–28+

ONGOING RULE

HIGHER of opening or closing TSB used each year

SMSF-specific note: If your SMSF has a limited recourse borrowing arrangement (LRBA — a loan to purchase an asset), the outstanding loan balance is EXCLUDED from your TSB Value for Division 296 purposes. This differs from the standard TSB rules that apply for contribution caps — where LRBA balances are included.

How is Division 296 tax calculated?

Three steps — the ATO works through these steps each year

1

Calculate Division 296 fund earnings

Start with the fund's taxable income (from the annual tax return). Subtract assessable contributions. Add back pension earnings (ECPI) that were previously exempt. The result cannot be negative — if earnings are nil, no tax applies.

Taxable income − Contributions + Net ECPI = Fund earnings

2

Determine individual share (attribution)

In a multi-member SMSF, an actuary determines each member's share of the fund's taxable superannuation earnings. The actuary calculates each member's proportion based on the value of their superannuation interest throughout the year — an actuarial certificate is required.

Attribution determined by the fund actuary – certificate required (limited exceptions)

3

Apply the above-threshold percentage

Only the portion of attributed earnings relating to balances above $3 million are taxed. The above-threshold % = (TSB Value − $3,000,000) ÷ TSB. This percentage is applied to your attributed earnings (step 2) to give your 'taxable superannuation earnings', taxed at 15% (and further 10% > $10M).

Tax = Your earnings × Above-threshold % × 15% (+10%)

WORKED EXAMPLE

Let's see how it works in practice

Scenario: Sarah has $4.5 million in her SMSF. The fund earns $225,000 this year. Sarah is the only member.

Step 1	Fund earnings (simplified)	$225,000
Step 2	Attribution: 100% (Sarah is sole member)	$225,000
Step 3a	Above-threshold % = ($4.5M − $3M) ÷ $4.5M	= 33.3%
Step 3b	Taxable super earnings = $225,000 × 33.3%	= $75,000
Tax	Division 296 tax = $75,000 × 15%	= $11,250

In perspective: Sarah's effective Division 296 rate on her *total* $225,000 earnings is 5% ($11,250 ÷ $225,000). The combined tax on earnings above the threshold is approximately 30%.

WORKED EXAMPLE — TWO-MEMBER SMSF

What about a couple in the same SMSF?

David ($4.2M TSB) and Jennifer ($1.8M TSB) in the same SMSF. Fund earns $250,000. Fund earnings after adjustments: $170,000.

David

IN SCOPE

Total super balance	**$4.2M**
Attribution share	**70%**
Earnings share	**$119,000**
Above-threshold %	**33.3%**
Taxable earnings	**$39,667**

Estimated Div 296 tax: $5,950

Jennifer

NOT IN SCOPE

Total super balance	**$1.8M**
Attribution share	**30%**
Earnings share	**$51,000**
Above-threshold %	**0%**
Taxable earnings	**$0**

Estimated Div 296 tax: $0

Total Div 296 tax: $5,950 | An actuary's certificate is required for this two-member fund to determine the attribution of earnings per member

IMPORTANT RULES

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Key Div 296 tax rules SMSF members need to know

Actuary's certificate required

In any multi-member SMSF where at least one member is in scope, a registered actuary must certify how the fund's earnings are split between members. This is an additional annual cost.

Pension phase is no longer a shelter

In most super funds, pension earnings are tax-free (known as ECPI). However, for Division 296, pension earnings are NOT exempt — they are added back into the calculation. Being in pension phase does not reduce Division 296 exposure.

LRBA loans excluded from TSB

If an SMSF has borrowed to buy a property (LRBA), the outstanding loan amount is excluded from your Total Superannuation Balance for Division 296 purposes only. This is an SMSF-specific concession.

Tax is levied on the member, not the fund

Unlike the standard 15% fund tax, Division 296 tax is your personal liability — not the SMSF's. The ATO assesses individuals directly. They then have 84 days to pay and can release funds from the SMSF to do so.

You can pay from the SMSF

When the ATO issues an assessment, an individual can authorise the SMSF to pay on their behalf using a release authority. This avoids needing to find cash outside super.

First assessment: mid-2028

Because the first income year is 2026–27, the first ATO assessments are expected in the 2027–28 calendar year. There is time to plan — but that window is closing.

CGT cost base uplift

THE CGT ELECTION

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A one-off opportunity you must not miss

The CGT cost base reset election lets SMSF trustees reset the cost base of their assets to market value at 30 June 2026 — permanently reducing future Division 296 capital gains tax.

This election must be made before your SMSF's 2026–27 tax return due date. Once the deadline passes, this opportunity is GONE FOREVER.

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Requirements of the CGT election

01 **Eligible fund**
Small superannuation fund — no more than 6 members (s 296-50, ITAA 1997)

02 **All CGT assets**
Election must apply to every CGT asset held at 30 June 2026 — no partial elections (s 296-50(2)(b))

03 **Continuous holding**
Each asset must be held at 30 June 2026 and continuously thereafter until the CGT event (s 296-50(1)(b))

04 **Market value at 30 June 2026**
First element of cost base reset to market value — all other elements taken to be nil (s 296-50(3)(a)–(b))

05 **No indexation**
Indexation is excluded from the reset cost base (s 296-50(3)(c)(i))

06 **CGT discount preserved**
Paragraph 115-20(1)(a) ITAA 1997 taken to be satisfied for each reset asset (s 296-50(3)(c)(ii))

07 **Timing — election window**
Must be made between commencement of s 296-50 and the due date for lodging the 2026-27 income tax return (s 296-50(2)(c))

08 **Irrevocable**
Once made, the election cannot be varied, withdrawn or revoked under any circumstances (s 296-50(2)(d))

09 **Division 296 only**
The cost base reset applies solely for Division 296 fund earnings — it does not affect the ordinary CGT cost base

10 **Record — the election**
The signed election document must be retained (s 296-55(1)(a))

11 **Record — cost base**
Asset-by-asset records of original and reset cost base elements for each CGT asset (s 296-55(1)(b))

12 **5-year retention**
Records retained for 5 years after certainty of no further relevant CGT event. Penalty for failure — s 288-25 TAA Sch 1 (s 296-55(3))

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How does the cost base reset work?

<u>Without election</u> *— existing shares purchased in 2014 for $200,000, now worth $600,000:*

Without election: if you sell for $700K, the full $500K gain (less discount) flows into Div 296 tax calculation.

<u>With election</u> *— cost base resets to $600,000 at 30 June 2026:*

<u>With election:</u> if you sell for $700K, only the $100K post-reset gain flows into Div 296. Saving = $400K × 15% ≈ $60,000.

Key rules:

- ⚠ All-or-nothing — applies to ALL eligible assets
- ⚠ Applies only to direct assets held
- ⚠ Div 296 purposes only — standard CGT unaffected
- ⚠ Irrevocable once made
- ⚠ Deadline: before the 2026–27 return due date

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CGT adjustment & making election

Example Superannuation Fund

- All assets within the fund have unrealised capital gains to 30 June 2026 – ***make CGT election*** before due date of SMSF Annual Return.

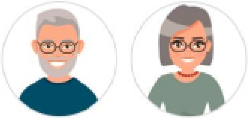
Investment	Units	30 June 2026 valuation	Cost base (from July 2017 reset)	Deferred CGT liability
Woodside Shares	20,000	$640,000	$589,600	$2,800
Wesfarmers Shares	10,000	**$750,000**	$440,000	$7,560
Coles Shares	20,000	$420,000	$350,000	$1,000
Telstra Shares	20,000	**$105,000**	$56,000	$200
Commonwealth Bank	2,000	**$339,500**	$169,540	$5,000
Residential Investment Property	1	**$1,200,000**	$600,000	N/A
Cash		**$187,300**		

NOTE: The residential investment property is held via a 13.22C Unit Trust

Interest	Amount ($)
ABP3	$1,141,200
Accumulation	$2,500,600
Total	**$3,641,800**

30 June 2026 interests

CGT adjustment & making election



The 2nd Generation Superannuation Fund

- ABC Shares down $20,000 on cost base.
- All other assets in unrealised capital gains position
- No member balance > LSB threshold?
- What if a member dies?
    - Surviving member balance > LSB threshold
- ***Make CGT election*** before due date of SMSF Annual Return.

30 June 2026 interests:

Member	Accumulation	ABP1	ABP2
Michelle	$430,000	$570,000 (TRIS)	$130,000 (TRIS)
Phillip	$370,000	$1,924,000	-

Shares	Units	30 June 2026	Cost base
ABC Shares	5,000	$230,000	$250,000
DEF Shares	10,000	$295,000	$285,000
GHI Shares	2,000	$160,000	$62,000
JKL Shares	1,000	$310,000	$34,000
MNO Shares	20,000	$95,000	$56,000
PQR Group	2,000	$50,000	$19,200
STU Group	5,000	$82,000	$25,500
VWX Group	8,000	$335,000	$224,000
YZ Group	1,000	$205,000	$36,000
BHP	1,000	$50,000	$38,260
Wesfarmers	2,000	$150,000	$148,320
CBA	500	$85,000	$78,370
ANZ	3,000	$111,000	$89,670
Westpac	3,000	$126,000	$95,430
Term Deposit	1	$250,000	$250,000
Art Gallery	1	$1,500,000	$1,500,000
LRBA		($735,000)	($750,000)
Cash		$125,000	
Total		**$3,424,000**	

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CGT adjustment & making election

Coops Super Fund

- Fund only currently holds gold bullion – unrealised capital gain.
- What if Craig dies or is disabled - $2.0m life & TPD policy?
- ***Make CGT election*** before due date of SMSF Annual Return.

30 June 2026 interests:

Member	Accumulation	Insurance
Craig	$160,000	$2.0m Life & TPD
Kirsty	$120,000	-

Investments	Units	30 June 2026	Cost base
Gold bullion	10 oz	$72,000	$16,905
Cash		$208,000	

Death benefits

Death of a member — TSB reference amount

TSB REFERENCE AMOUNT

- **2026–27 (Year 1 transitional):** members who die in year one are not liable for Division 296 tax — no TSB reference amount arises
- **From 1 July 2027:** individual's TSB is taken to be nil after their death
- In year of death, TSB reference amount = TSB just before start of the year (never end-of-year)
- Earnings tax still calculated on that opening TSB — estate can face a Div 296 liability for the year of death

ISSUES TO CONSIDER

- Need to consider reversionary vs non-reversionary pension — different Div 296 outcomes for surviving spouse
- Cannot rely on the 12-month transfer balance account deferral strategy to manage Div 296 exposure
- Reversionary pension is in survivor's TSB from 30 June of year of death — no deferral of Div 296 threshold test
- Non-reversionary gives survivor one additional year before the new death benefit pension hits their TSB

Regulation 296-70.04 – Death & Relevant Super Earnings

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Core Rule — What Reg 296-70.04 Does

When a person dies, their relevant superannuation earnings for Div 296 purposes include earnings on their interest from the year of death PLUS any earnings in later years — until the EARLIER of: (i) all superannuation death benefits are paid/distributed from the interest; OR (ii) another person becomes a retirement phase recipient of an income stream supported by the interest (i.e. a reversionary pension commences).

Subsection 296-70.04(2)

General Earnings Rule (s.296-65)

The deceased person's relevant superannuation earnings include attributable earnings for:

- The income year in which they die; ***AND***
- Any ***LATER*** income year(s) — until death benefits are fully paid or a reversionary pension commences.

This captures earnings from asset sales (e.g. CGT events) that occur after death but before the interest exits the fund.

Subsection 296-70.04(3)

TSB Earnings Formula (s.296-70)

If a reversionary pension commences during the year of death:

- The TSB value of the deceased's interest is taken to be NIL at year-end; ***AND***
- Death benefit income stream payments to the beneficiary are NOT counted in the deceased's withdrawals total (to avoid double counting).

This ensures only earnings up to the reversion date are captured for the deceased.

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Tax at death — three layers for large balances

Scenario: death benefit paid to non-tax dependants (e.g. adult children) where the second/last member dies

LAYER 1

Tax within the fund

0–15%

CGT on assets sold or transferred as part of the death benefit payout.

0% all assets supporting pension interests (fully ECPI exempt)

Up to 15% where accumulation interests exist — rate depends on fund's ECPI proportion

LAYER 2

Tax on death benefit

15–32%

Tax on taxable component paid to non-tax dependants (e.g. adult children):

15% paid via estate (taxed element)

17% paid direct to children (incl. Medicare levy)

If benefit includes insurance proceeds (untaxed element):

30% via estate / **32%** paid direct (untaxed element)

LAYER 3

NEW

Division 296 at death

15–25%

Applies where deceased member's TSB exceeded $3.0m. Charged on attributed earnings in year of death.

15% on attributed earnings where TSB > $3.0m

+10% (25% total) on the proportion above $10.0m

Liability assessed to the fund — falls on the estate or beneficiaries

Reversionary v Non-reversionary

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Survivor scenario — when one partner passes away

Mark ($2.2M) and Linda ($2.4M) — combined SMSF balance: $4.6M. Neither is currently in scope for Div 296.

DURING THEIR LIFETIME

Neither in scope

Mark: $2.2M — below $3M

Linda: $2.4M — below $3M

No Division 296 tax today

IF MARK PASSES AWAY

Linda at risk

Linda's balance: $2.2M + $2.4M = $4.6M

Now $1.6M above the $3M threshold

Division 296 tax will apply each year

What you should do: Even if you are not currently in scope, couples with a combined balance approaching $3 million should review: (1) reversionary vs non-reversionary pension structure and (2) existing death benefit nominations.

Option A — Reversionary Pension

Phillip's ABP reverts to Michelle ($2,250,000) — lump sum $950,000 also paid from accumulation interest

Scenario: Phillip dies 1 March 2028 — Reversionary pension $2,250,000 commences to Michelle on death + lump sum $950,000 paid from accumulation interest

Key Facts	
Phillip's TSB — 30 June 2027	**$3,200,000**
Date of Death	**1 March 2028**
Pension Type	**Account-Based Pension (REVERSIONARY to Michelle)**
Reversion Date	**1 March 2028 (same day as death)**
Reversionary Pension Amount	**$2,250,000 (pension portion)**
Lump Sum from Accumulation	**$950,000**
NO Subsequent Year Attribution	**1 March 2028 — reversion date**
Phillip's TSB at Year End (30 Jun 2028)	**Nil (TSB = $0 per s.296-50)**

How Reg 296-70.04 Applies

1 NO Subsequent Year Attribution at Reversion

Because Michelle becomes a retirement phase recipient of the reversionary pension on 1 March 2028 — paid on death from accumulation interest (within the same income year), Phillip's attribution period ends at that date — NOT at year end or full distribution.

2 Phillip's TSB Taken to be NIL at Year-End

Under s.296-70.04(3), the TSB value of Phillip's interest is taken to be NIL at 30 June 2028 for the purposes of his TSB earnings formula. No further earnings accrue to Phillip's assessment after the reversion date.

3 NO Subsequent Year Attribution

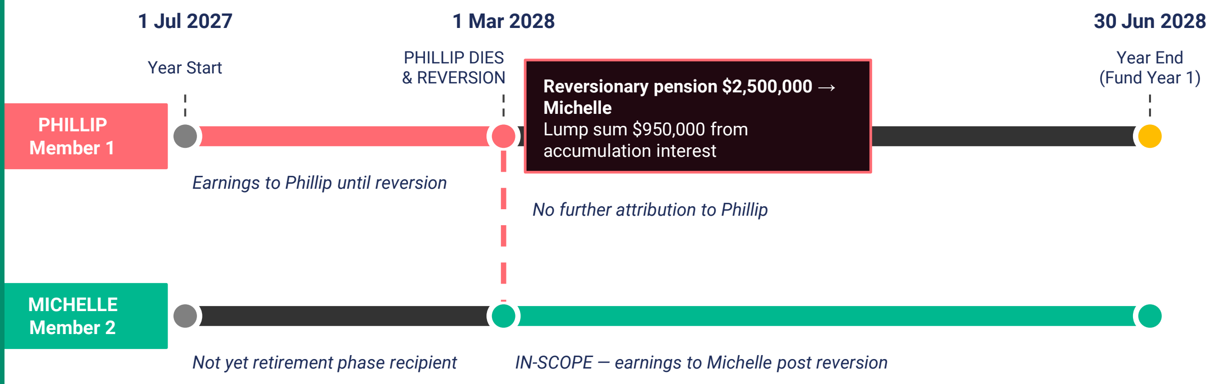
Because the reversion occurred within the year of death, there is NO need to include earnings from a subsequent fund year in Phillip's Div 296 assessment. This is the KEY difference from the non-reversionary scenario.

4 Michelle Picks Up from Reversion Date

From 1 March 2028 the reversionary pension ($2,250,000) is attributed to Michelle — treated as a ‘contribution’ for Div 296 purposes. Michelle’s TSB at 30 June 2028 = $3,611,000 ($1,361,000 own + $2,250,000 reversionary), exceeding the $3M threshold. Michelle has her own Div 296 attribution for 2027-28 on earnings from 1 March 2028.

Option A — Reversionary Pension

Attribution ends at reversion date (1 Mar 2028) — Phillip assessed to death, Michelle IN-SCOPE from reversion



Phillip's Assessment — 2027-28	
Year-end TSB:	**NIL (s.296-70.04(3))**
Lump sum (accumulation):	**$950,000**
Total attributable earnings:	**Actuary to calculate**

Michelle's Assessment — 2027-28 ✦ IN-SCOPE	
TSB at year-start (own):	**$1,268,500**
Reversion 'contribution':	**$2,250,000**
TSB at 30 Jun 2028 (total):	**$3,611,000**
Exceeds $3M threshold:	**YES — IN-SCOPE**
Attributable earnings:	**Actuary to calculate**

- *Own balance $1,361,000 + reversionary pension $2,250,000 = $3,611,000.*
- *Earnings measured from reversion date (1 Mar 2028) to 30 Jun 2028.*
- *Michelle has her own Div 296 assessment for 2027-28.*

Option B — Non-Reversionary Pension

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Death benefit split: DBIS $2,100,000 (1 Oct 2028) + lump sum $1,400,000

Scenario: Phillip dies 1 March 2028 — Lump sum $1,400,000 paid on death — Michelle commences DBIS $2,100,000 on 1 October 2028

Key Facts

Phillip's TSB — 30 June 2027	**$3,200,000**
Date of Death	**1 March 2028**
Pension Type	**Account-Based Pension (Non-Reversionary)**
Death Benefit Form	**Lump sum $1,400,000 (paid on death 1 March 2028)**
DBIS Commencement	**$2,100,000 — commences 1 October 2028**
Attribution Period Ends	**1 October 2028**
Year 2 Earnings (2028-29 to 1 Oct)	**$103,212 (attributed to Phillip — 1 Jul to 1 Oct 2028)**
Phillip's TSB — 30 June 2028	**Nil (TSB = $0 per s.296-50)**

How Reg 296-70.04 Applies

1

Year of Death (2027-28) — Year 1

Phillip's relevant superannuation earnings include ALL earnings during 2027-28 ($412,850). The lump sum of $1,400,000 is paid on death. As the DBIS has not yet commenced, earnings continue to be attributed to Phillip into 2028-29.

2

Earnings in Subsequent Year (2028-29)

Because Michelle's DBIS does not commence until 1 October 2028 (new financial year), earnings attributable to Phillip's remaining interest continue into 2028-29 until the DBIS commences. Additional earnings: $103,212.

3

Attribution Period Ends

The attribution of earnings to Phillip ceases when all death benefits are finally paid within 2027-28. The full year earnings of $412,850 are included in Phillip's 2027-28 Div 296 assessment.

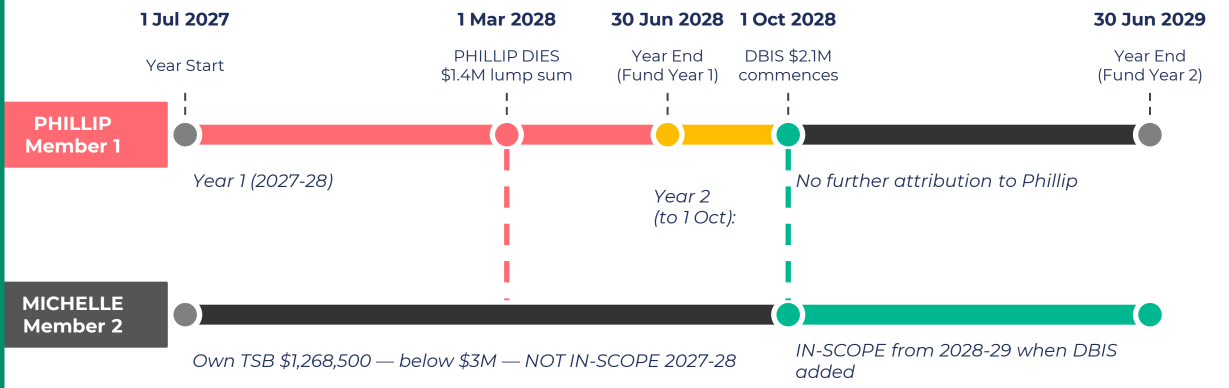
4

Single Consolidated Assessment

Phillip receives ONE Div 296 assessment for 2027-28 incorporating earnings from BOTH fund years: $412,850 (2027-28) + $103,212 (2028-29 to 1 Oct) = TOTAL $516,062. Michelle's 2027-28 assessment covers her own balance only (TSB $1,268,500 → $1,361,000).

Option B — Non-Reversionary Pension

Attribution spans TWO fund years — DBIS $2,100,000 commences 1 Oct 2028 | Michelle NOT IN-SCOPE 2027-28 (own TSB $1,361,000)



Phillip's Assessment — 2027-28 IN-SCOPE	
Year-end TSB (s.296-50):	**NIL**
Lump sum on death:	**$1,400,000**
Year 1 earnings (2027-28):	**Actuary TBC**
Year 2 earnings (to 1 Oct):	**Actuary TBC**
TOTAL EARNINGS:	**Actuary TBC**

Michelle's Assessment — 2027-28 (NOT IN-SCOPE)	
Own TSB 30 Jun 2028:	**$1,361,000**
Below $3M threshold:	**NOT IN-SCOPE**
Lump sum received:	**$1,400,000**
DBIS (1 Oct 2028):	**$2,100,000**

From 2028-29 TSB includes DBIS $2,100,000 — will exceed $3M and Michelle becomes IN-SCOPE.

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FUTURE IN-SCOPE RISK — NOT JUST A BALANCE PROBLEM

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Events pushing clients into scope — even if not there today

You don't need to already have $3 million — these life events can change everything overnight.

Reversionary pension — death risk

HIGH RISK

On death, a reversionary pension automatically transfers deceased's full balance to survivor's TSB — potentially pushing over $3M overnight. **Key solution**: consider restructuring to a non-reversionary pension, so the trustee can pay a lump sum death benefit instead, giving control over timing and amount.

Life insurance / TPD proceeds paid into super

HIGH RISK

If an individual has death cover or total and permanent disability (TPD) insurance inside super and a claim is paid, the proceeds are added to their (or their beneficiary's) TSB. A $1.5M payout on a $1.8M balance creates a $3.3M balance overnight.

Strong investment returns in a good year

WATCH CLOSELY

A fund with a $2.7M balance that earns 15% in a strong market year ends the year at $3.1M — crossing the threshold for the first time with no deliberate action taken. Annual growth alone can bring someone in scope.

Employer contributions (incl. SG)

WATCH CLOSELY

If still working and receiving superannuation guarantee contributions, balance grows each year whether intend it to or not. Members approaching $3M should model when SG alone will push them over.

Divorce — property settlement contributions

SITUATIONAL

A family law property settlement can require one party to make a superannuation contribution to the other. Receiving a large settlement payment into super could push their TSB above $3M.

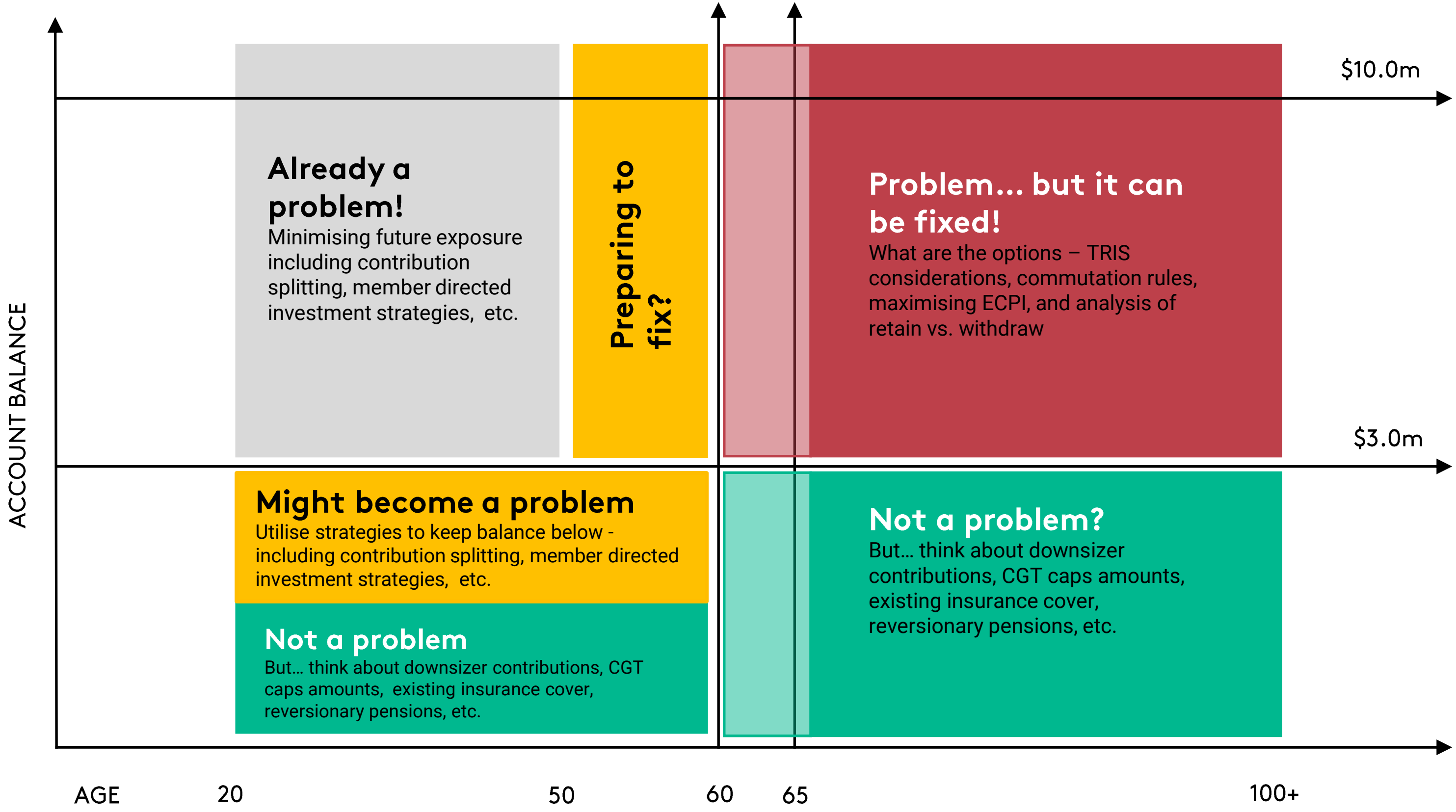
Rollovers and other transfers

SITUATIONAL

Rolling in new monies (consolidating multiple super accounts), and other cap amounts (e.g. CGT cap) can concentrate balances and bring a previously out-of-scope member above the threshold.

Strategic considerations

Division 296 – client strategy matrix



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WHAT CAN YOU DO?

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Planning strategies to consider

There is no 'undo' for Division 296 — but there are legitimate strategies to consider for your clients.

Make the CGT reset election

HIGH PRIORITY

If a fund holds assets with embedded gains, this single action could save tens or hundreds of thousands of dollars in future Division 296 tax. Time-sensitive — start preparing for valuations.

Review Fund investment strategy

REVIEW NOW

Trustees may wish to consider whether the fund's asset mix, realisation timing, or income strategy should change given the higher tax rate on earnings above $3M.

Consider withdrawing from super

DISCUSS WITH ADVISER

If an individual's balance is well above $3M, it may be worth discussing whether withdrawing some funds from super is appropriate — particularly if they have other investment structures available.

Review pension and drawdown strategy

REVIEW NOW

Pension earnings are captured for Division 296. Increasing drawdowns from a pension account reduces the balance — and the future Division 296 liability — over time.

Review death benefit arrangements

ESTATE PLANNING

Consider restructuring from a reversionary to a non-reversionary pension. On death, a non-reversionary pension does not auto-continue — the trustee can pay a lump sum, giving control over what enters the survivor's TSB. Also review BDBNs to align to any pension changes.

Consider contribution strategy

MODEL IT

Future contributions increase an individual's TSB and therefore their Division 296 exposure. This doesn't mean stop contributing — but the trade-offs are now different. Model it with your clients.

Options available (pre-12 May 2026 thought process)

Section	Topic	
1.	Retaining 100% of funds within superannuation (subject to Div. 296 tax)	
2.	Transfer excess >$3.0m to:	(i). Personal name
		(ii). Family trust
		(iii). Corporate entity
		(iv). Other (i.e. insurance / investment bonds)
3.	Transfer excess > $3.0m - Other options	(i). Gifting
		(ii). Primary residence (PPR) improvements
		(iii). Other

CGT reform — what's changing?

✗ CHANGED — Individuals, Trusts & Partnerships

- 50% CGT discount REMOVED for assets acquired after 12 May 2026
- Replaced with CPI cost base indexation — pay tax only on real gains
- 30% minimum tax applies to inflation-adjusted gains from 1 July 2027
- Existing assets held before Budget night grandfathered until sold
- New residential property: investors can choose 50% discount OR new indexation method — whichever is better
- **Exemption**: Age Pension / JobSeeker recipients in year of disposal

✓ UNCHANGED — Superannuation Funds (incl. SMSFs)

- No changes to CGT within superannuation funds
- One-third CGT discount continues to apply in accumulation phase — effective CGT rate 10%
- Pension phase remains entirely CGT-free — 0%
- SMSFs explicitly excluded from the new CGT measures

CGT comparison by structure

Structure	Income Tax	CGT (from Jul 2027)	Negative Gearing
Individual (high income)	Up to 47%	30% min tax on real gain	Quarantined — established property
Family / Discretionary Trust	30% min (from 2028)	30% min tax on real gain	Quarantined — established property
Company	25%	25% flat — no discount	Offset vs company income only
SMSF — accumulation *	**15% ***	**1/3 discount — effective 10% ***	Quarantined within fund
SMSF — pension phase *	**0% ***	**0% — fully exempt ***	Quarantined within fund
New residential build	Marginal rate	Choice: 50% disc. or indexation	Fully deductible (new builds only)

Minimum tax on discretionary trusts — 30% from 1 July 2028

The New Rules — Discretionary Trusts

- **30% minimum tax** on <u>ALL</u> discretionary trust income from 1 July 2028
- Tax paid by trustee — income splitting benefit largely eliminated
- Beneficiaries (non-corporate) receive non-refundable credits
- Corporate beneficiaries do NOT receive credits — 'bucket company' strategy curtailed
- CGT on trust assets also subject to new rules (indexation + 30% min) from 1 July 2027
- 3-year CGT rollover relief available from 1 July 2027 to restructure

Exclusions:

- Fixed trusts, widely held trusts
- Complying superannuation funds
- Special disability trusts, deceased estates, charitable trusts
- Primary production income
- Certain testamentary trusts (existing at announcement)

✓ SMSFs — Not Affected + Planning Opportunity

SMSFs are expressly <u>excluded</u> from the minimum trust tax.

SMSF members who also hold wealth in discretionary trusts now face an important structural review:

- The 30% income tax floor eliminates much of the benefit of trust income-splitting
- CGT on trust assets is now materially worse than super in most scenarios
- The case for holding investments inside super vs. a family trust has significantly strengthened

Rollover Relief Window (1 July 2027 – 30 June 2030):

- Assets can be transferred from discretionary trusts to companies, fixed trusts, or individuals without triggering CGT
- Creates a pathway to restructure — and potentially contribute to SMSF within contribution limits

Division 296 — additional tax for large super balances

Up to $3 million	$3M – $10 million	Above $10 million
Additional Div 296: Nil	**Additional Div 296:** +15%	**Additional Div 296:** +25% (15%+10%)
Accumulation: 15%	**Accumulation**: 30% headline	**Accumulation:** 40% headline
Pension phase: 0%	**Pension phase:** 15% headline	**Pension phase:** 25% headline

Key Points: The Div 296 tax is levied on the individual member — not the fund. Both thresholds ($3M and $10M) are CPI indexed annually. For the overwhelming majority of SMSF trustees (balances below $3M), Division 296 is not relevant — and for these members the 2026–27 Budget has substantially improved the comparative position of super versus external structures.

Division 296 + Discretionary Trust — Strategy Intersection

The strategy of accumulating outside super in a trust to avoid Div 296 has been fundamentally undermined by the trust minimum tax.

The Old Strategy (Pre-Budget)

TSB approaching $3M: slow super contributions. Accumulate new wealth in discretionary trust instead. Income-split to low-rate beneficiaries.

Avoid further Div 296 tax. Strategy appeared sound when announced.

Why It No Longer Works

From 1 July 2028: 30% minimum tax on all trust income — income splitting eliminated. From 1 July 2027: 50% CGT discount removed (30% min on real gains).

Result: trust now faces 30% income tax + 30% CGT minimum — comparable to or worse than Div 296 effective rate on proportional super earnings above $3M.

What to Do Now

Review the trust strategy.
Use rollover relief (from 2027) to exit trust tax-free.

Consider contributing back to SMSF up to $3M threshold. Model whether Div 296 at 30% (only on earnings above $3M proportion) is better than trust at 30% on ALL income.

How does the proposed trust changes impact your client Division 296 tax conversation?

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SHARED ASSUMPTIONS

Starting TSB — Scenario A $8,000,000

Amount withdrawn & redeployed $2,000,000

Assumed return on all assets 4.0%

Withdrawal tax treatment

Tax-free (pension phase / over 60)

Avg SMSF fund tax rate 10.0%

Trust minimum tax rate (from 1 Jul 2028) 30.0%

Scenario A: TSB $8,000,000 → above $3M: `62.50%` → Div 296 = `$30,000`

Scenario B: TSB $6,000,000 → above $3M: `50.00%` → Div 296 = `$16,500` · Trust tax = `$45,000` · Withdrawal: `tax-free`

Annual tax saving (A−B): `$-16,500` per year

SCENARIO EARNINGS — AUTO-SCALED FROM SHARED ASSUMPTIONS (OVERRIDE MANUALLY)

Scenario A — Full balance in SMSF $8,000,000

SMSF fund earnings $500,000

Div 296 earnings (total super earnings) $320,000

TSB: **$8,000,000** · Both earnings are on the full balance. Adjust for ECPI via the avg fund rate slider above.

Scenario B — Reduced SMSF + Family trust $6,000,000 SMSF + $2,000,000 trust

SMSF fund earnings (reduced balance) $350,000

Div 296 earnings (reduced balance) $220,000

Trust income (on redeployed amount) $150,000

SMSF TSB: **$6,000,000** · Trust assets: **$2,000,000**

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OVERALL TAX OUTCOME — ANNUAL COMPARISON

Scen A — Total annual tax	Scen B — SMSF tax (reduced)	Scen B — Trust tax	Scen B — Total annual tax	Annual tax saving (A vs B)	Withdrawal tax (one-off)
$80,000	**$51,500**	**$45,000**	**$96,500**	**$16,500**	**$0**
Effective 16.00% on fund earnings	Fund: $35,000 + Div 296: $16,500	30.0% × $150,000	Effective 19.30% blended	Redeployment costs more Scenario A better	Tax-free — pension phase

⚠ Scenario A (full SMSF) is more tax-efficient by $16,500 per year

SMSF total tax: $80,000 (effective 16.00%%). Trust tax of $45,000 at 30.0% exceeds the Div 296 saving of $13,500 from the reduced TSB. Consider reducing the average fund tax rate further via ECPI or pension phase, or adjusting the withdrawal amount.

DETAILED SIDE-BY-SIDE BREAKDOWN

Full tax component breakdown — Scenario A vs Scenario B

TAX COMPONENT	SCENARIO A — SMSF ONLY	SCENARIO B — SMSF + TRUST	DIFFERENCE (B – A)	TYPE
SMSF — FUND-LEVEL TAX				
Fund taxable earnings	$500,000	$350,000	$-150,000	Variable
Fund tax (10.0% avg rate)	$50,000	$35,000	$-15,000	Variable
SMSF — DIVISION 296 TAX (FIXED RATES)				
Div 296 earnings (attributed)	$320,000	$220,000	$-100,000	Fixed
Tier 1: above $3M (62.50% → 50.00%)	$200,000	$110,000	$-90,000	Fixed
Div 296 tier 1 tax (15%)	$30,000	$16,500	$-13,500	Fixed
Total Division 296 tax	$30,000	$16,500	$-13,500	Fixed
FAMILY TRUST — MINIMUM TAX (SCENARIO B ONLY)				
Trust income	—	$150,000	—	Fixed
Trust tax (30.0% min rate)	—	$45,000	—	Fixed
Total annual tax — Scenario A	$80,000			
Total annual tax — Scenario B		$96,500		
Annual saving (A – B)			$-16,500	

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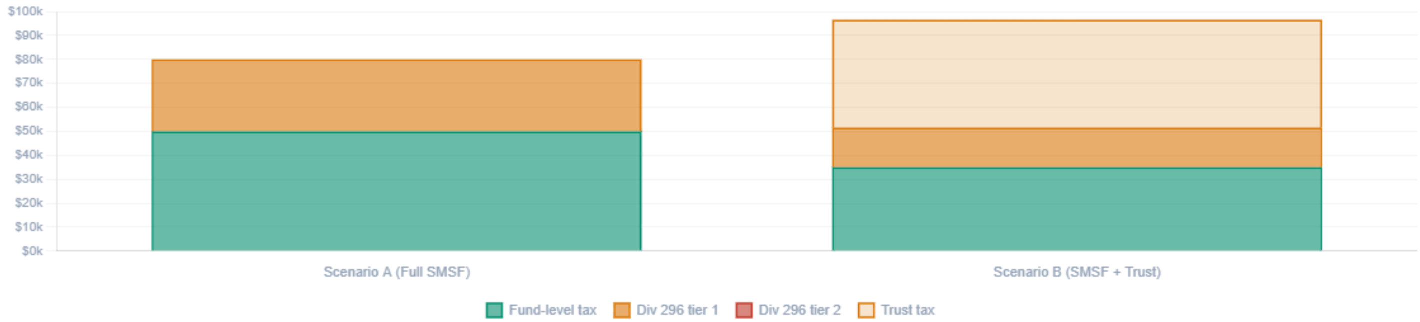
Total tax comparison — stacked by component



⚠ Important: Costs NOT captured in this model

Transaction & exit costs

- **CGT on assets sold within the SMSF** to fund the withdrawal — this is a real cost that reduces the net proceeds available for redeployment. The fund's CGT position (including any unrealised gains and the 1/3 discount) must be modelled separately before determining the true after-cost withdrawal amount.
- **LRBA break costs** if the fund holds geared property — early repayment fees and refinancing costs can be material.
- **Brokerage and transaction costs** on selling fund assets and reinvesting via the trust.
- **Trust establishment and ongoing compliance costs** — trust deed, accounting, tax returns and potential stamp duty on asset transfers.
- **Stamp duty** on any real property transferred or acquired through the trust structure.

Death benefit tax considerations

- **Superannuation death benefits paid to non-tax-dependants** (e.g. adult children who are financially independent) are subject to tax of **15% + 2% Medicare levy (17%)** on the taxable component. This is an often-overlooked cost of retaining large balances in super.
- **By contrast, assets held outside super** (e.g. via the family trust) are generally included in the deceased estate and distributed under the will free of this 17% death benefit tax — though CGT and other considerations may apply.
- **Where a member has a large taxable component**, the death benefit tax exposure on super may be significant. This should be weighed against the annual Div 296 saving when assessing the redeployment decision over the member's expected holding period.
- **Binding death benefit nominations (BDBNs)** and the identity of beneficiaries materially affect this calculation — specialist advice is essential.

What about members with balances above $10M?

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SHARED ASSUMPTIONS

Starting TSB — Scenario A **$15,000,000**

Amount withdrawn & redeployed **$3,000,000**

Assumed return on all assets **5.0%**

Withdrawal tax treatment

Tax-free (pension phase / over 60)

Avg SMSF fund tax rate **4.0%**

Trust minimum tax rate (from 1 Jul 2028) **30.0%**

Scenario A: TSB $15,000,000 → above $3M: `80.00%` · above $10M: `33.33%` → Div 296 = `$168,663`

Scenario B: TSB $12,000,000 → above $3M: `75.00%` · above $10M: `16.67%` → Div 296 = `$98,169` · Trust tax = `$72,000` · Withdrawal: `tax-free`

Annual tax saving (A−B): `+$8,094` per year

SCENARIO EARNINGS — AUTO-SCALED FROM SHARED ASSUMPTIONS (OVERRIDE MANUALLY)

Scenario A — Full balance in SMSF $15,000,000

SMSF fund earnings **$720,000**

Div 296 earnings (total super earnings) **$1,100,000**

TSB: **$15,000,000** · Both earnings are on the full balance. Adjust for ECPI via the avg fund rate slider above.

Scenario B — Reduced SMSF + Family trust $12,000,000 SMSF + $3,000,000 trust

SMSF fund earnings (reduced balance) **$480,000**

Div 296 earnings (reduced balance) **$760,000**

Trust income (on redeployed amount) **$240,000**

SMSF TSB: **$12,000,000** · Trust assets: **$3,000,000**

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OVERALL TAX OUTCOME — ANNUAL COMPARISON

Scen A — Total annual tax	Scen B — SMSF tax (reduced)	Scen B — Trust tax	Scen B — Total annual tax	Annual tax saving (A vs B)	Withdrawal tax (one-off)
$197,463	**$117,369**	**$72,000**	**$189,369**	**$8,094**	**$0**
Effective 27.43% on fund earnings	Fund: $19,200 + Div 296: $98,169	30.0% × $240,000	Effective 26.30% blended	Redeployment saves tax Scenario B saves	Tax-free — pension phase

✓ Redeployment (Scenario B) saves $8,094 per year in tax

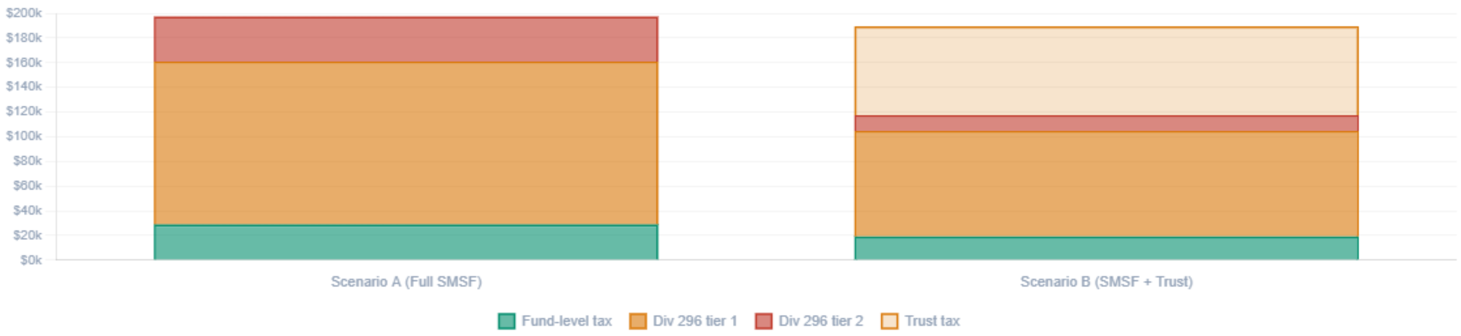
Moving $3,000,000 from SMSF to trust reduces the TSB from $15,000,000 to $12,000,000, cutting the above-$3M Div 296 percentage from 80.00% to 75.00% and the above-$10M percentage from 33.33% to 16.67%. The Div 296 reduction of $70,494 exceeds the trust tax cost of $72,000. The withdrawal is tax-free — the full annual saving flows immediately.

DETAILED SIDE-BY-SIDE BREAKDOWN

Full tax component breakdown — Scenario A vs Scenario B

TAX COMPONENT	SCENARIO A — SMSF ONLY	SCENARIO B — SMSF + TRUST	DIFFERENCE (B – A)	TYPE
SMSF — FUND-LEVEL TAX				
Fund taxable earnings	$720,000	$480,000	$-240,000	Variable
Fund tax (4.0% avg rate)	$28,800	$19,200	$-9,600	Variable
SMSF — DIVISION 296 TAX (FIXED RATES)				
Div 296 earnings (attributed)	$1,100,000	$760,000	$-340,000	Fixed
Tier 1: above $3M (80.00% → 75.00%)	$880,000	$570,000	$-310,000	Fixed
Div 296 tier 1 tax (15%)	$132,000	$85,500	$-46,500	Fixed
Tier 2: above $10M (33.33% → 16.67%)	$366,630	$126,692	$-239,938	Fixed
Div 296 tier 2 tax (additional 10%)	$36,663	$12,669	$-23,994	Fixed
Total Division 296 tax	$168,663	$98,169	$-70,494	Fixed
FAMILY TRUST — MINIMUM TAX (SCENARIO B ONLY)				
Trust income	—	$240,000	—	Fixed
Trust tax (30.0% min rate)	—	$72,000	—	Fixed
Total annual tax — Scenario A	**$197,463**			
Total annual tax — Scenario B		**$189,369**		
Annual saving (A – B)			**+$8,094**	

Total tax comparison — stacked by component



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- **By contrast, assets held outside super** (e.g. via the family trust) are generally included in the deceased estate and distributed under the will free of this 17% death benefit tax — though CGT and other considerations may apply.
- **Where a member has a large taxable component**, the death benefit tax exposure on super may be significant. This should be weighed against the annual Div 296 saving when assessing the redeployment decision over the member's expected holding period.
- **Binding death benefit nominations (BDBNs)** and the identity of beneficiaries materially affect this calculation — specialist advice is essential.

Key Planning Opportunities for SMSF Trustees

1

Review assets held personally or in trust

Model what new CGT rules mean at sale. The case for transferring or restructuring before 1 July 2027 is strong for many clients holding appreciated share portfolios or investment properties.

2

In-specie contributions before 1 July 2027

Transfer appreciated assets into SMSF before new CGT rules commence — captures remaining 50% CGT discount and resets cost base inside super. Eligible: listed securities, business real property. Note: residential investment properties cannot be contributed in-specie.

3

Check non-concessional contribution cap

In-specie transfers count as NCCs. From 1 July 2026 the annual NCC cap is $130,000 (3-year bring-forward up to $390,000). TSB must be below the general transfer balance cap to make NCCs.

4

Review trust distributions and structure before 2028

30% minimum trust tax from 1 July 2028. CGT rollover relief from 1 July 2027 allows tax-free restructuring out of discretionary trusts. Three-year window — review trust structures now.

5

Consider pension phase transition timing

Members approaching retirement should model the benefit of commencing a pension (0% tax). The disparity with external structures makes this timing more valuable than ever.

KEY DATES & DEADLINES

Important Div 296 dates you need to know

1 July 2026

Division 296 takes effect

The law applies from this date. The 2026–27 income year is the first year of assessment.

30 June 2026

CGT reset election — snapshot date

Market values of all SMSF assets at this date become the new Division 296 cost bases if the election is made.

30 June 2027

First year-end TSB measurement

The first TSB check under Division 296. This is the only date used in the transitional 2026–27 year.

Before tax return - due date (2026–27)

CGT election lodgement deadline

The election must be lodged before the SMSF's 2026–27 income tax return due date. IRREVOCABLE — this deadline will not be extended.

2027–28 (est.)

First ATO assessments issued

The ATO is expected to issue the first Division 296 tax assessments for the 2026–27 year. Clients will have 84 days to pay.

Ongoing

Annual assessment each year

Division 296 tax will be assessed every year the member's TSB exceeds the threshold, and the fund has positive earnings.

Key other dates to remember (subject to Budget)

12 May 2026
Budget night
(already passed)

Negative gearing quarantine applies to new purchases of established residential property.

Existing holdings grandfathered.

In-specie transfer planning window is open.

1 July 2026
Division 296
commences

Additional 15% tax on earnings attributable to super balances above $3M applies.

CPI indexation of thresholds applies.

1 July 2027
New CGT rules
commence

50% CGT discount replaced for individuals, trusts and partnerships.

30% minimum tax applies to real gains.

SMSF rules unchanged.

CGT rollover relief for trust restructuring opens.

1 July 2028
Trust minimum
tax commences

30% minimum tax on discretionary trust income.

Distributions to low-rate beneficiaries no longer achieve same outcome.

Review trust structures before this date.

30 June 2030
CGT rollover
relief closes

Three-year window to restructure out of discretionary trusts without CGT consequences closes.

Act before this date to take advantage of rollover relief (subject to state-based duties).

NEXT STEPS

What happens next?

Here is what you need to do together with your clients to get prepared:

1. **Review Total Superannuation Balance**
   Confirm current TSB across all funds and determine whether individuals are in scope for 2026–27. If they are close to the threshold, model the scenarios.
   Adviser action

2. **Assess the CGT reset election for your client's funds**
   Review the embedded gains in your client's SMSF's asset register and quantify the potential tax saving from making the CGT cost base reset election before the deadline.
   Time-sensitive

3. **Model Division 296 tax liability**
   Using the fund's financials and member TSBs, prepare an estimate of annual Division 296 tax liability under various scenarios — with and without the CGT election.
   Planning tool

4. **Review estate and insurance arrangements**
   If your clients are part of a couple sharing an SMSF, review whether a reversionary or non-reversionary pension structure better manages the Division 296 survivor risk, review BDBNs, and model whether insurance to fund the potential tax liability makes sense.
   Estate planning

5. **Ongoing annual review**
   Division 296 tax will be assessed every year. Incorporate this into your annual review — monitoring your client's TSB, managing distributions, and ensuring the election has been correctly lodged.
   Ongoing

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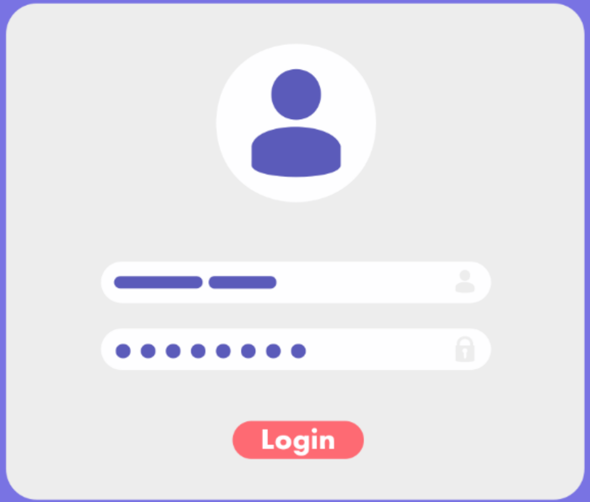
Introducing the

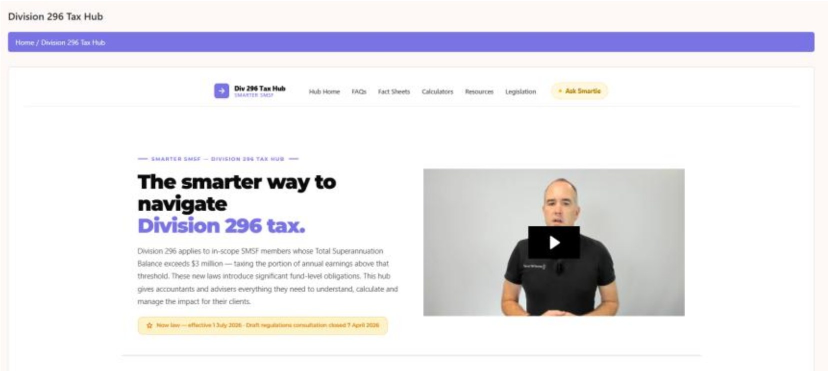
Division 296 Tax Hub

Your complete resource for understanding, calculating and managing Division 296 tax for SMSF professionals.

NOW LIVE — APRIL 2026



Seven resource categories. One destination.



FAQs

50 questions · 10 topics

FREE

Calculators & Tools

3 tools · Excel + online

PREMIUM

Legislation

Div 296 · Regulations · ATO

FREE

Fact Sheets

9 SMSF-specific sheets

PREMIUM

SMSF Documents

Deed upgrades · CGT election · Pensions changes

COMING SOON

Glossary

30+ key definitions

FREE

Client & Adviser Resources

6 white-label templates & presentation

PREMIUM

FREE ACCESS

Smarter Answers FAQ Library

50 of the most commonly asked Division 296 questions, organised by topic with live search. Written by SMSF specialists based on the Act and regulations.

50	10
Questions	Topics

FAQ TOPICS COVERED

- The Basics — what is Div 296 and who is affected
- Calculating the Tax — the statutory formula
- Pension Accounts — impact on retirement phase
- CGT Reset — the cost base election
- Couples & Survivor Scenario
- Death Benefits — reversionary pensions
- Payment & Release Authorities
- Contributions & Withdrawals
- Estate Planning Considerations
- Strategies & Planning Responses

SMSF Fact Sheet Series

PREMIUM

1. Overview & Introduction to Div 296
2. The Statutory Calculation Formula
3. CGT Cost Base Reset Election
4. Pension Accounts & Retirement Phase
5. Death Benefits & Reversionary Pensions
6. Couples — Survivor Exposure
7. Contributions & Withdrawal Adjustments
8. Payment, Release & Debt Accounts
9. Strategies & Planning Responses

Client & Adviser Resources

PREMIUM

White-label communication templates ready to send to clients — fully editable Word documents.

In-scope client letter
For members over $3m TSB

Not-yet-in-scope letter
For members approaching threshold

Survivor exposure letter
Couples — planning conversation starter

Adviser covering note
Attach to any client communication

CGT reset election explainer
Plain-language for clients

Strategy summary
Overview of planning options

PREMIUM

3 Purpose-Built
Div 296 Calculators

Available as interactive online tools AND downloadable Excel workbooks (.xlsx)

01 Div 296 Tax Estimator

Calculate annual Div 296 tax based on TSB and fund earnings. Projects across multiple years with growth assumptions. Export online tool into word document.

Online tool | Excel .xlsx

02 CGT Reset Saver

Model the tax saving from making a CGT cost base reset election at 1 July 2025. Shows break-even and net benefit. Export online tool into word document.

Online tool | Excel .xlsx

03 Survivor Modeller

Projects the Div 296 exposure that arises when a death benefit flows to a surviving spouse, with strategies to manage it.

Online tool | Excel .xlsx

What's free? What's premium?

FREE

No account required

- FAQs (50 questions)
- Glossary (30+ terms)
- Legislative References
- SMSF Documents portal
- Ask Smartie (AI support)

PREMIUM — INCLUDED

CPD & Document Members

Included in your existing
Smarter SMSF membership

- Everything in Free
- 9 x SMSF Fact Sheets
- 3 x Calculators (online + Excel)
- 6 x Client & Adviser templates

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12-month subscription
for non-members

- Everything in Free + Premium
- Standard Fee: $600 + GST (p.a.)

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Smart people learn together

Tim Miller

Technical & Education Manager
Smarter SMSF
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SMSF Association Accredited Educator

SMSF Masterclass – Division 296 tax

17-06-2026 @ 11:00 AM - 17-06-2026@ 02:30 PM

Online Event

Virtual events | Paid

Smarter SMSF/SG – Calendar for 2026:	
●	11 June – 30 June Checklist

- SG Webinar
- Face-to-face events
- CPD webinar event
- Free webinar event

To find out more, visit:
https://smartersmsf.com/events

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Thank you!

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